

ZapSplat End User License Agreement (EULA)

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Important – please read carefully. By accessing or downloading sound effects or music from Zapsplat.com, you agree to be bound by the terms of this License Agreement. If you are uncertain about any intended use of our sounds or music under this License, please contact us before using them.

This License grants a single user the right to download and use our sound effects and music, subject to the terms below.

1. License Grant

ZapSplat grants you a worldwide, perpetual, non-exclusive license to use our sound effects and music tracks in your projects, subject to the conditions of your account type (Basic or Premium).

2. Basic (Free) Users

Usage Rights: You may download and use our sound effects and music tracks in an unlimited number of personal, commercial, and broadcast projects worldwide, in perpetuity, on a non-exclusive basis. Free users can only access mp3 formats of our sound effects and music and are subject to download limits.

Attribution Required: You must provide clear credit to “ZapSplat” wherever reasonably possible in your project (e.g., in end credits, descriptions, acknowledgements, or documentation).

3. Premium Users

Usage Rights: Premium members enjoy the same worldwide, perpetual, non-exclusive rights to use our sound effects and music in unlimited projects. Premium users can access mp3 and wav formats of our sound effects and music on an unlimited download basis, subject to our Fair Use Policy detailed in point 8 of this Agreement.

Attribution not Required: Attribution is not required for Premium members.

Lifetime Use: Any sounds or music downloaded while your Premium subscription is active remain licensed for attribution-free use for life, in unlimited projects. This right continues even if you cancel or downgrade your Premium membership, provided the sounds were downloaded during your active Premium period.

4. Permitted Uses

You may use our sound effects and music, embedded or synchronized within a production, in any project including but not limited to:

1. Film, television, and radio programs.
2. Commercials and advertising.
3. Podcasts, audiobooks, and streaming content.
4. Games, apps, and software.
5. YouTube videos, Twitch streams, and other online media.
6. Blogs, websites, and social media.
7. Presentations, conferences, exhibitions, and educational projects.
8. Art installations, theatre, and live performances.
9. Musical compositions and performances.

You may edit, adapt, or combine our sounds with other sounds for use within your projects. However, our sounds must not constitute the primary value of a product (for example a sound effects app) or be redistributed outside of your project, as detailed below in point 5. Prohibited Uses.

5. Prohibited Uses

You may not, under any circumstances:

1. Share, transfer, loan, rent, sublicense, or sell our sound effects or music to any third party.
2. Redistribute our sounds in any form (e.g., sound libraries, file sharing, apps, social networks, or physical media such as hard drives, DVDs, ROMS etc).
3. Use our sounds as the primary value in a relaxation video, soundboard, or similar standalone product.
4. Remix or alter our music tracks into new standalone musical works for distribution.
5. Use our sounds in physical products (e.g., toys) without a separate written agreement.
6. Use our sounds or music to train Artificial Intelligence (AI) or machine learning models of any kind.

6. Content ID and Platform Claims

ZapSplat owns or holds the full rights necessary to distribute the sounds and music we provide under this License. We operate robust systems and procedures to prevent third-party ownership conflicts and to minimize the risk of false claims.

However, you acknowledge that while ZapSplat takes every reasonable step to ensure our content is clear for use, these automated systems may, on rare occasions, generate mistaken or unjustified claims. In such a case, ZapSplat will help to get claims cleared.

7. Access to Content

1. You may only download sounds through your own ZapSplat account.
2. Automated access (bots, scrapers, scripts) is prohibited.
3. You may not provide third parties with access to your account.

8. Fair Usage Policy

We actively monitor downloads to ensure fair usage and prevent abuse. If we detect excessive, suspicious, or automated activity, we may suspend or terminate your account. If you believe your account was flagged incorrectly, please contact support.

9. Copyright and Ownership

1. All sound effects and music are licensed, not sold.
2. Ownership and copyright remain with ZapSplat and our contributors.
3. No intellectual property rights are transferred to you under this Agreement.

10. Termination & Breach

ZapSplat reserves the right to suspend or revoke your license and account access if you materially breach this Agreement, including but not limited to redistribution of sounds, misuse of content, or fraudulent activity.

If your license is revoked due to breach, you must immediately cease using any ZapSplat sounds in new projects.

11. Indemnification

You agree to indemnify and hold harmless ZapSplat.com, its owners, and contributors from any claims, damages, or expenses (including legal fees) arising from misuse of our sounds or breach of this Agreement.

12. Disclaimer of Warranties

Our content is provided “as is,” without warranties of any kind. While we take great care to ensure files are free from errors or defects, ZapSplat does not guarantee error-free performance or uninterrupted access.

13. Limitation of Liability

ZapSplat shall not be liable for any direct, indirect, incidental, or consequential damages resulting from the use or inability to use our sound effects or music.

14. Acceptance of Terms

By downloading, accessing, or otherwise using the sounds, music, or any other content provided by ZapSplat, you acknowledge that you have read, understood, and agree to be bound by the terms of this License Agreement. If you do not agree to these terms, you must not use or retain any content obtained from ZapSplat.

15. Contact

Should you need to contact us with any questions relating to this Agreement, use of our content or for anything else, you can do so via the email address below:

Email: support@zapsplat.com

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